

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CAMBODIA

Complete Community Opposition How-To

This guide uses the Cambodian terms and bodies you'll actually run into — the Environment and Natural Resources Code and the EIA, the Ministry of Environment, the 2001 Land Law and legal possession, communal and indigenous land title, economic land concessions, and the international lenders whose safeguards have delivered where domestic routes could not — and explains each in plain words the first time. Civic space is constrained and protest can bring criminal charges, so this guide favours the machinery of the law and puts your safety first.

INTRODUCTION & FRAMEWORK

In the **Areng Valley**, deep in the **Cardamom Mountains** of Koh Kong, about 1,500 Indigenous **Chong** people have lived for centuries among sacred forests, burial sites, and rare wildlife — Asian elephants, the critically endangered Siamese crocodile. When a succession of Chinese companies, ending with **Sinohydro**, planned the **Chhay Areng dam** — flooding some 20,000 hectares and driving the Chong from their homeland — the community refused. From **March 2014 they blockaded the only access road**, keeping survey crews and officials out of the valley for over a year, supported by the group **Mother Nature Cambodia**, a network of **Buddhist monks**, and youth activists from Phnom Penh, with a campaign of viral images that carried the valley to the world. Company after company pulled out. And in **February 2015, Prime Minister Hun Sen announced the dam would be suspended**; in 2017 it was shelved indefinitely. A roadblock in the forest, and a nation's attention, stopped a mega-dam.

The Chong of the Areng Valley stopped their dam with a year-long roadblock — but Cambodia's counterweight must be held plainly, because this was won in an authoritarian state that punishes dissent, and the tools that matter most now are not confrontation but the quieter machinery, recently modernised. The single most important is the **Environmental Impact Assessment**: the 2023 **Environment and Natural Resources Code** and the older **EIA Sub-Decree** require one — reviewed by the **Ministry of Environment before a project is approved**, with **public participation** — and that pre-approval gate is where a community has the most power, in the moment before a project passes through it. The **2001 Land Law** protects **legal possession** and **communal and Indigenous land title**. And the **international lenders** behind many projects carry safeguards that have delivered where domestic routes could not. But these tools have grave limits, and this guide states them plainly. Mother Nature's co-founder was **deported** and its activists **repeatedly jailed**; **street mobilisation brings criminal charges, and the courts are not independent in politically sensitive matters** — so the assessment, the land-title rights, and the lenders matter far more than confrontation. And the dam is suspended, not dead — it **remains on the government's energy master plan**, with many more dams eyed in the Cardamoms — so a Cambodian win must be defended, and the realistic goal is often a better outcome rather than a fully stopped project.

The Whole Strategy in One Idea

A big project looks unstoppable, but it's a chain of approvals and dependencies, and a chain breaks at its weakest link. A Cambodian project needs its **EIA reviewed before approval**; where it takes land, it runs into **legal possession** and **communal/indigenous title** under the 2001 Land Law; and where it's financed by

an **international lender**, it engages that lender's **safeguards and accountability mechanism**. Every one of those is a link you can grab. **Find the one closest to your hand and pull — and protect your people above all.**

Be Honest About Which Fight You're In

Before you spend a year on this, work out your real situation — safety first:

- **The pre-approval EIA is your single most important lever** — the moment before approval is when you have the most power.
- **If you hold legal possession or communal/indigenous title, that's a real, distinctive protection** — under the 2001 Land Law.
- **If an international lender finances it, its safeguards are often the decisive route** — they have delivered where domestic law could not.
- **Street protest brings criminal charges, and courts aren't independent** — so lean on the machinery, keep any public action disciplined and safe, and protect your people.

Read the whole guide once before you move. Two habits run through it: **use the machinery** — the EIA, the land-title rights, and the lender safeguards — rather than confrontation, and **combine them**, safely: the documents, the assessment, the land claim, the lender complaint, careful media. That combination, kept safe, is how Areng was won.

HOW THE SYSTEM WORKS

To break the chain you have to see it — who decides, how a project moves, and who's watching.

Who Actually Decides

The core environmental step is the **EIA**, reviewed by the **Ministry of Environment before approval** — but note the weak points: the Ministry is historically a **weak reviewer** (able only to give "findings and recommendations" the approving ministry need merely "consider"), and **"special" or "crucial" projects** approved by the Royal Government can be **exempted** from the process entirely. The approving line ministry grants the project. **Land** decisions engage possession and communal/indigenous title. And for financed projects, the **international lender** and its safeguards sit outside the domestic system. Know which decision you can reach — and remember the assessment, the land title, and the lender are your real levers.

How a Project Moves — and Where You Jump In

The EIA (before approval). The developer prepares an **EIA** (or, for smaller projects, an **IEIA**), reviewed by the Ministry of Environment, with **public participation**. *Your opening — the single most important, and it arms every later step:* engage before approval, obtain the EIA (it is sometimes done late or kept from the public), and put your objections on the record.

Land. Where land is taken, **legal possession** and **communal/indigenous title** apply. *Your opening:* possession or title can block or compensate an economic land concession or expropriation.

Financing. *Your opening — often decisive:* an international lender's **safeguards and accountability mechanism**.

Construction. *Your opening:* the roadblock (as at Areng) and international attention — carefully, given the danger.

Follow the Money and the Permissions

Dig up three things. **Who's behind it and who owns them** — and, crucially, **who is financing it** (a lender with safeguards is a real pressure point; Areng's Chinese backers pulled out under pressure). **What it still needs** — the EIA not approved, the land not lawfully taken, financing not closed: whatever's missing is the soft spot, and the pre-approval moment is the key one. **Who's paying** — development banks and financiers with accountability mechanisms.

Who's Supposed to Be Watching

Each is an ally or an arena — used carefully. The **Ministry of Environment** reviews the EIA (weakly). The **land authorities** register possession and communal/indigenous title. **International lenders' accountability mechanisms** have delivered where domestic routes could not. And — with great care given the danger — Cambodia's **affected communities, Indigenous groups, monks, and the careful civil society and media that remain** are the forces that reach furthest — the combination that stopped Areng. The courts, in politically sensitive matters, are not an independent check.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether you engage before approval, whether you hold land title, whether an international lender is involved — and, always, the danger.

What you do	Roughly works	How long	Cost	What "works" means
Just gather documents (safely)	5–10%	weeks	low	The base for everything else
Engaging the EIA before approval	20–40%	before approval	low	Conditions, a redo, or a better outcome
Legal possession / communal-title claim	25–50%	months–yr	low	Concession or expropriation blocked/compensated
International lender safeguard / complaint	30–55%	months–yr	low	Lender conditions or withdraws
Roadblock / sustained community refusal	25–50%	months–yr	low but risky	Surveys blocked; project suspended (Areng)
Careful media / international attention	20–45%	months–yr	low, risky	Pressure; a backer withdraws
Domestic courts (politically sensitive)	5–20%	1–3 yr	low, risky	Rarely independent — low expectations
Everything together (EIA, land title, lender, world watching)	35–55%	1–3 yr	low	Suspended, blocked, conditioned, better outcome
Everything together (special/crucial project, closed)	10–30%	years	low, risky	A better outcome — protect people first

The levers that move the needle most are the **pre-approval EIA**, the **land-title rights**, and the **international lender safeguards**, backed by careful attention. Areng shows the ceiling (a mega-dam suspended by community refusal and a viral campaign) and the honest limit (an authoritarian state that jails

activists and keeps the project on its master plan). So aim for a suspended, blocked, or bettered project — and protect your people above every outcome.

On cost and safety: engaging the EIA, the land claim, and lender complaints are low-cost, and international networks bring the lender campaigns. But this is an authoritarian state — protest brings criminal charges, activists have been jailed, and courts aren't independent — so lean on the machinery, keep any public action disciplined and safe, protect the vulnerable, and route risk through lawyers and international allies.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak. Being specific — this EIA, this land title, this lender — is strong. Answer five questions in writing, safely.

1. What is it, and who's behind it — and who is financing it? Name the project, the company, its owners, and — crucially — its international lenders.

2. Where is it, and what does it touch? Get the footprint and lay it over **land you legally possess or hold in communal/indigenous title**, forest and protected areas, rivers, fishing grounds, communities. **Legal possession and communal/indigenous title are your sharpest, most distinctive levers**, so establish these first — Areng turned on Indigenous Chong land and a protected forest.

3. What stage is it at — and has it been approved yet? Is the EIA under review? Has approval issued? **The moment before approval is when you have the most power**, so establishing this is urgent.

4. What does it still need that it lacks? An EIA not approved, land not lawfully taken, financing not closed. The missing piece is the soft spot — and pre-approval is the key window.

5. Who else is affected, and who already opposes it? Neighbouring and Indigenous communities, monks, careful civil society, international networks. Areng united the Chong, monks, and youth.

What this looks like in real life. A community learns a dam or concession is planned on its land, its EIA not yet approved (or a "crucial project" exemption sought), financed from abroad. The five questions yield: a company (and international lender) behind it; a site on possessed or titled land (the sharp levers); an EIA before approval; a project still needing approval, land, and financing; and a coalition of communities, monks, and networks. That's the Areng pattern — engage the EIA before approval, assert the land title, target the lender, and — carefully — hold the line.

STEP 2: DOCUMENTATION

The difference between a community that can fight and one that can't is proof — gathered **safely**. Build it in three layers.

Layer one: the paper trail. Get the documents the decision rests on — the **EIA (before approval)**, the project approval and conditions, the **land, possession, and communal/indigenous-title** records, the economic land concession or expropriation papers, and the **financing** arrangements. The EIA is sometimes done late or kept from the public — press for it. Then read them hard for flaws — an understated impact, an ignored alternative, a missing or late EIA, a "crucial project" exemption, land taken over lawful possession or title.

Layer two: the ground truth. Dated, located photographs and video of the site, the land, the forest, the river — baseline evidence most of all — and, carefully, the testimony of affected residents and Indigenous authorities. In this authoritarian context, weigh the risk to anyone documenting.

Layer three: the map of land title and financing. Lay the project over the land you possess or hold in title, the protected forest, and the water — and map the **international lender**, the pressure point. This feeds the EIA engagement, the land claim, and the lender complaint.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA, the approval and conditions, the land/possession/title records, the concession or expropriation papers, the financing** — from the Ministry of Environment, the land authorities, and public and lender filings (8A).
- **Land-title documentation** — possession and communal/indigenous-title records, to establish your rights.
- **Ownership and the international lender** — corporate and financing records.
- **The land-title-and-financing map** — your land, the protected areas, and the lender, laid over the site.
- **Dated evidence and consented testimony** — photographs marked with date and place, gathered so no one is put at risk.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you power — and Areng was won by a united community, monks, and youth. Build it **safely and disciplined**, because protest brings charges. Four moves.

Start with a tight, trusted core. The residents most affected, the elders who hold the land history, a few tireless organisers, and respected community, Indigenous, and religious leaders — people you trust.

Unite the community and bring in monks and careful civil society. Areng's power came from the Chong uniting with Buddhist monks, Mother Nature, and Phnom Penh youth. Build the widest unified front — the moral authority of monks and the legitimacy of Indigenous communities are real strengths — and keep it disciplined and safe.

Reach international networks — early. International networks bring the **lender complaints and safeguards** and a measure of protection through attention. Reach them early, especially where a development bank or foreign financier is involved.

Bring in lawyers — and plan for safety above all. Lawyers who run land-title and EIA matters, and a serious safety plan. Activists have been jailed and deported — keep everything as lawful and low-risk as possible, protect the vulnerable, and route danger through lawyers and international allies.

Build to last, and defend the win. Cambodian fights run for years, and — the Areng lesson — a suspended project stays on the master plan. Build clear roles, a secure archive, careful communications, a way to decide together, a safety plan, and a plan to guard a win the government may revive.

STEP 4: THE EIA, LAND TITLE & THE LENDERS

The machinery — not confrontation — is Cambodia's real lever, and safety comes first.

Engage the EIA Before Approval — Your Most Important Move

The single most important lever is the **EIA, before the project is approved**. Obtain it (press hard — it is sometimes late or hidden), expose its flaws, and put your objections on the record while the Ministry of Environment is still reviewing. The moment before approval is when you have the most power. Watch, too, for a "**special/crucial project**" exemption that would remove the project from the process — and challenge it.

Legal Possession and Communal/Indigenous Title — the Distinctive Protection

The **2001 Land Law** protects **legal possession** and **communal and indigenous land title**. Where you hold possession or title, an **economic land concession** or expropriation over your land is unlawful or must properly compensate. Establishing and asserting your title is a genuine, distinctive protection — and titling that was denied can itself be pursued.

The International Lenders — Often the Decisive Route

Cambodia's distinctive lever: many big projects depend on **international lenders** whose **safeguards and accountability mechanisms** have **repeatedly delivered where domestic routes could not**. A complaint to a lender's mechanism can force conditions, remedies, or withdrawal. Map the financing and, with international allies, use the lender's own standards.

The Honest Limits

Straight talk: the EIA, the land title, and the lenders are real levers, but the Ministry of Environment is a weak reviewer, "crucial projects" can be exempted, the courts aren't independent in sensitive matters, and — the gravest limit — protest brings criminal charges and activists are jailed. So use the machinery — the pre-approval EIA, the land title, the lender safeguards — keep any public action disciplined and safe, protect your people, and count a suspended, blocked, conditioned, or bettered project as wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it.

The EIA becomes a pre-approval demand. Not "the project is bad" but *"the EIA is missing / defective / not yet public, and approval cannot lawfully proceed without a proper, participatory assessment."*

Title becomes a wall. *"This is our land under legal possession / communal indigenous title — a concession over it is unlawful without our consent and proper compensation."*

A lender becomes the lever. *"Your institution's safeguards forbid financing a project that takes titled land without consent — as your own standards require."*

The harm becomes a careful public story. *"The forest, the burial grounds, the land our people have held for centuries — for a dam we never agreed to."*

Match it to the venue: the EIA objections to the Ministry of Environment; the title to the land authorities; the financing to the lender's accountability mechanism; the human story — carefully — to international attention.

STEP 5: MEDIA STRATEGY

In Cambodia, careful attention and international pressure count — Areng's viral images carried the valley to the world and reached its backers — but the domestic space is dangerous, so handle media with great care.

Lead with people and place, not confrontation. Not "the government is corrupt" but "the forest, the burial grounds, the land our people have held for centuries — for a dam we never agreed to." Use your strongest material: dated evidence, the land-and-lender map, and — carefully — human voices, without exposing anyone. Areng showed the power of strong, beautiful images shared widely.

Work several audiences at once — reach the lenders and the world. Careful domestic channels and social media build attention; international media and networks reach the project's lenders and offer a measure of protection. Make it easy: captioned evidence, accurate summaries, a map, careful voices — and let the community decide what is said and by whom.

Two hard rules. Accuracy above all — one exaggeration can be used against you. And protect people above everything — attention can shield, but weigh every public act for safety in an authoritarian state.

EMAILS & LETTERS

Make them your own; keep them factual and calm; keep copies safely; and protect anyone at risk.

8A — Request for the EIA and land records.

Subject: Request for the EIA and land records — [project].

"We, residents of [place], request the EIA (before approval), the approval and conditions, and the land, possession, and title records for [project] at [location]. [Contact.]"

8B — Objection in the EIA (before approval).

Subject: Objection — EIA for [project].

"We, residents of [place], object to [project] before its approval: [the EIA is missing / defective / not public; it takes our titled land]. We ask that approval be withheld pending a proper, participatory assessment. [Attach evidence.]"

8C — Asserting land title (to the land authorities).

Subject: Legal possession / communal title — [project].

"Our land at [location] is held under [legal possession / communal indigenous title]. A concession or expropriation for [project] over it is unlawful without our consent and proper compensation. [Attach evidence.]"

8D — To an international lender's accountability mechanism.

Subject: Complaint — [project] at [location].

"We understand your institution finances [project], which [takes our titled land without consent / lacks a proper EIA]. Your safeguards require [assessment / consent / remedy]. We file this complaint and seek [conditions / remedy / withdrawal]. [Attach evidence.]"

8E — To a lawyer / careful civil-society network.

Subject: Support — [project].

"Our community faces [project] on our titled land, financed by [lender]. We've gathered [the EIA, title records, photographs] and ask for legal support on the land and EIA, and help with a lender complaint, as partners. [Contact and evidence summary.]"

8F — To the international press (carefully).

Subject: [Community] moves to protect [land / forest] from [project].

"For centuries the [Indigenous people] of [place] have held [the land / forest] at [location]. Now [project] — financed from abroad — threatens it. We can provide dated evidence, a map — and, carefully, interviews. [Contact.]"

8G — To the Ministry of Environment (exemption watch).

Subject: Concern regarding a possible exemption — [project].

"We understand [project] may be treated as a 'special/crucial project' exempt from full assessment. We ask that it undergo a proper EIA with public participation. [Attach evidence.]"

8H — Rallying the community (safely).

Subject: We can protect our land — here's how, safely.

"[Project] threatens [our land / forest]. In the Areng Valley, the Chong, with monks and youth, blockaded the road and made a mega-dam be suspended. Through the pre-approval EIA, our land title, the international lenders, and disciplined unity, we have a real chance — protecting one another above all. Please join us — safe and disciplined. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

- 1. Nail down the project, whether it's been approved yet, and who finances it.** The pre-approval moment and the lender are your key levers.
- 2. Engage the EIA before approval and object (8B); watch for a "crucial project" exemption (8G).**
- 3. Assert your legal possession / communal-indigenous title (8C).**
- 4. Request the documents (8A) safely.**
- 5. File a complaint to the international lender's accountability mechanism (8D).**
- 6. Unite the community with monks and networks, and use careful attention (8F/8H).** Areng was won this way.

Even lean, those six use the machinery, hit the land title and the lender, and keep your people safe — disciplined.

WHEN THE SYSTEM IS TILTED

Cambodia's tools are real but the tilt is severe, so plan for it — safety first.

When it's a "special/crucial project." The government can exempt the biggest projects from assessment. Demand a proper EIA, assert your land title, and target the lender — the machinery around the exemption is your ground.

When the Ministry of Environment is weak. It can often only "recommend." Strengthen your hand with the **land title** and the **lender safeguards**, which bite harder.

When the courts aren't independent. In politically sensitive matters, expect little from the domestic courts. Lean on the EIA, the land title, the lenders, and international attention instead.

When activists are targeted. Protest brings criminal charges, and activists have been jailed and deported. Keep everything disciplined, low-risk, and lawful, protect the vulnerable, and use international attention as a shield.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Cambodia has severe, documented capture of land, concessions, and large projects by political and business interests, so this matters — approach it with great care.

How to spot it. EIAs skipped, late, or hidden; "crucial project" exemptions used to bypass assessment; economic land concessions over land people lawfully possess; titling denied so land can be leased; benefits to the connected while the community carries the harm.

Who's supposed to guard against it. Domestic oversight is weak and the courts are not independent in sensitive matters. The strongest checks are **external: international lenders' accountability mechanisms** and international attention. Domestically, the **Ministry of Environment's** assessment and the **land-title** system are the machinery to insist upon.

How to fight it safely. Document precisely and factually — how the process was bent, who benefits, what the law required — and keep clear the line between what you can prove and what you suspect. Do not make public accusations you can't back; in this space they can be dangerous. Route serious evidence to lender mechanisms, trusted lawyers, and international networks, protect witnesses above all, and pair exposure with the land and EIA claims.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your proof; pinning down the land title and the lender aims it; the united community, monks, and networks build the power; the pre-approval EIA, the land claim, and the lender complaint press it; careful attention raises the cost and protects your people. Together they multiply. One at a time, they stall — and defend the win.

Early on (weeks 1–8): nail down the project, whether it's approved, its land impact, and its lender; engage the EIA before approval and object; assert your land title; request the records safely; unite the community and reach international networks and a lawyer.

In the thick of it (months–years): press the pre-approval EIA and any exemption; pursue the land-title claim; file the lender complaint; build disciplined unity; use careful international attention.

The long haul (years): carry the land and lender matters through; keep the coalition and the attention alive; hold the line for a suspended, blocked, conditioned, or bettered project — and guard the win against revival, protecting your people throughout.

FINAL ASSESSMENT

Stopping a destructive project in Cambodia can be done — the Chong of the Areng Valley, with monks and youth, blockaded the road and a viral campaign, and made the government suspend a Chinese-backed mega-dam. Hold both truths, and never forget the danger. Cambodia's machinery is real, if tilted: a pre-approval EIA that is your single most important lever; legal possession and communal/indigenous land title under the 2001 Land Law; and international lenders whose safeguards have delivered where domestic routes could not. And the constraints are heavy: a weak environmental reviewer, "crucial project" exemptions, courts that aren't independent in sensitive matters, and an authoritarian state that jails activists and keeps a suspended project on its master plan.

Here's the discipline that wins, and it stays with the machinery and safe. Establish whether the project is approved yet — the pre-approval EIA is your most important lever — and whether you hold land title, and who finances it. Engage the EIA before approval and watch for an exemption. Assert your legal possession or communal/indigenous title. File a complaint to the international lender's accountability mechanism — often the decisive route. Unite the community with monks and networks, use careful attention, and protect your people above every outcome. Count a suspended, blocked, conditioned, or bettered project as wins. That's what Areng did — the united community, the land, the lenders, and the world's attention together — and the activists it cost their freedom are the reason your first duty is to protect one another. So can you — through the machinery, and safely.